

TENTATIVE RULING

Case: **Kakar v. Ford Motor Company et al.**
Case No. CV2024-3284

Hearing Date: **July 23, 2026** **Department Fourteen** **9:00 a.m.**

Plaintiff Farida Kakar's ("plaintiff") reply to defendant Ford Motor Company's ("defendant") opposition exceeds the 10-page limit set forth in California Rules of Court, rule 3.1113(d) without prior court approval. (See Cal. Rules of Court, rule 3.1113(d), (e).) Despite the foregoing, the Court will consider the entire reply. (Cal. Rules of Court, rule 3.1113(g) [oversize brief to be treated as a late-filed brief]; Cal. Rules of Court, rule 3.1300(d) [court has discretion to consider a late filed paper]; *Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal.App.5th 252, 262 ["a trial court has broad discretion to accept or reject late-filed papers."].) However, in the future, the Court may decline to consider any argument or legal authority found in pages exceeding the maximum permitted number of pages.

Plaintiff's motion for attorney fees and costs is **GRANTED IN PART** in the amount of **\$9,145.05**. (Civ. Code. § 1794, subd. (d).) The Court finds that:

- Plaintiff's counsel's requested hourly rates for Christopher Urner ("Urner"), Jorge L. Acosta ("Acosta"), and Mary M. Zazueta ("Zazueta") are reasonable and commensurate with the prevailing rate in the community. (*Heritage Pacific Financial, LLC v. Monroy* (2013) 215 Cal.App.4th 972, 1004, 1009 ["the court may rely on its own knowledge and familiarity with the legal market in setting a reasonable hourly rate."]; *Altavion, Inc. v. Konica Minolta Systems Laboratory, Inc.* (2014) 226 Cal.App.4th 26, 71–72; *Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1243; Acosta Decl., ¶¶ 4-10, 14-21, 27-28 Exh. A.) However, plaintiff only submitted evidence supporting Urner, Acosta, and Zazueta's hourly rates. (See, e.g., Acosta Decl.) Therefore, the Court declines to award attorneys' fees for time incurred by individuals other than Urner, Acosta, and Zazueta. (See *Mikhaeilpoor v. BMW of North America, LLC* (2020) 48 Cal.App.5th 240, 247 26["The prevailing party and fee applicant bears "the burden of showing that the fees incurred were... reasonably necessary to the conduct of the litigation," and were 'reasonable in amount'"], internal quotation marks omitted.) The Court further finds that plaintiff has established the hours spent by Urner, Acosta, and Zazueta were reasonable. (Civ. Code, § 1794, subd. (d); *Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn.* (2008) 163 Cal.App.4th 550, 564; *Horsford v. Board of Trustees of California State University* (2005) 132 Cal.App.4th 359, 396 ["...verified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous."]; *Nightingale v. Hyundai Motor America* (1994) 31 Cal.App.4th 99, 105, fn. 6.; see also *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1133; Acosta Decl., ¶ 27, Exh. A.)
- The Court declines to impose a "20% trim to any fees awarded." (Opp., pp. 6-7.) Defendant does not justify a 20 percent reduction as to all counsel's billing entries. (*Mikhaeilpoor, supra*, 48 Cal.App.5th at pp. 248-250; Opp., p. 6-7.)
- A multiplier is not warranted in this straightforward Song-Beverly Consumer Warranty Act case. (See *Consumer Privacy Cases* (2009) 175 Cal.App.4th 545, 556-557; *Downey Cares v. Downey Community Development Com.* (1987) 196 Cal.App.3d 983, 994; Acosta Decl.)

- The Court declines to award attorneys' fees as requested for the "estimated" time plaintiff claims Urner would spend reviewing the opposition and drafting a reply. (Acosta Decl., Exh. A [3.5 hours].) The Court further declines to award attorneys' fees for time not yet incurred to prepare for and attend the fee motion hearing. (Acosta Decl., Exh. A [2 hours].)
- Plaintiff has shown that the requested costs were "reasonably incurred . . . in connection with the commencement and prosecution of" this action. (Civ. Code, § 1794, subd. (d); Acosta Decl., ¶ 29, Exh. B.)

Therefore, the Court awards plaintiff **\$8,097.50** in attorneys' fees and **\$1,047.55** in costs, totaling **\$9,145.05**.

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required

TENTATIVE RULING

Case: **Scott v. DeSalvatore**
 Case No. CV2021-1217

Hearing Date: **July 23, 2026** **Department Thirteen** **9:00 a.m.**

Michael Fluetsch of Fluetsch and Fluetsch’s unopposed motion to be relieved as counsel for defendants Jason Wayne DeSalvatore, Michael Blackmun Jr., Native Ag Yolo, Inc., Cache Creek Cultivators, Inc., and Cache Creek Cannabis, Inc. is **GRANTED**. (Cal. Rules of Court, rule 3.1362.)

The notice of motion does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, **this tentative ruling is not effective until moving counsel files a proof of service with the Court showing service of a copy of the signed order on the client**. (Cal. Rules of Court, rule 3.1362(e).) No further order pursuant to California Rules of Court, rule 3.1312 or further notice is required.